

March 16, 2012



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 15386
(FIRST REVISION)

EXPIRATION DATE: November 30, 2013

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: MAC, LLC
Bay Saint Louis, MS
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the one-time, one-way transportation in commerce of five (5) 5-gallon buckets containing wetted waste primers and three (3) 5-gallon buckets containing wetted waste propellant by a contract carrier for disposal without an EX approval. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.56 in that a new explosive must be approved, except as provided herein.
5. BASIS: This special permit is based on the application of MAC, LLC dated June 13, 2011 submitted in accordance with § 107.105, and additional information dated February 14, 2012, and the public proceeding thereon.

March 16, 20126. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identi- fication Number	Packing Group
Powder, smokeless waste (wetted with not less than 30% water/oil by mass)	1.3C	UN0161	II
Primer, cap type waste (submersed in water/oil)	1.1B	UN0377	II

7. SAFETY CONTROL MEASURES:a. PACKAGING -

- (1) Powder, smokeless waste (wetted with not less than 30% water or oil by mass) must be placed in a plastic bag and then placed in a plastic drum with a tight fitting lid not exceeding 5 gallons capacity. The plastic bag must be closed so that the water/oil content of the smokeless powder waste will be maintained at 30% by weight during transport. Maximum Net Explosive Weight is 40 lbs per drum.
- (2) Primers, cap type waste (submersed in water/oil) must be placed in a plastic bag and then placed in plastic drum with a tight fitting lid not exceeding 5 gallons capacity. The plastic bag must be closed so that the primers are completely submerged in water/oil at all times during transportation. Maximum Net Explosive Weight is 0.6 lbs per drum.

b. OPERATIONAL CONTROLS -

- (1) This permit authorizes the one-way, one-time shipments of each waste (total of two) by a contract carrier from the location of waste generation to the waste disposal facility.
- (2) State highways must be travelled where possible. The vehicle will be routed around any large towns or cities and avoid populated areas when possible.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor Vehicle.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

March 16, 2012

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: C.Williams:dl